

BET9JA AGENCY AGREEMENT

BETWEEN

**KC GAMING NETWORKS LTD
(BET9JA)**

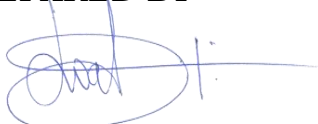
AND

EYONG SUNDAY SUNDAY

CR-UGE-36207(9080314)

(AGENT)

PREPARED BY



LEGAL & COMPLIANCE DEPARTMENT

KC GAMING NETWORKS LTD (BET9JA)

9, FUNSHO WILLIAMS AVENUE, OJUELEGBA, SURULERE, LAGOS

CONTENTS

Background Information

1. Definitions
2. Appointment and Scope of Authority
3. Obligations of Agent
4. Obligations of Bet9ja
5. Term
6. Compensation
7. Settlement
8. Intellectual Property Ownership
9. Money Laundering Obligations
10. Relationship
11. Exclusivity and Non-competition
12. Suspension and Termination
13. Confidentiality
14. Force Majeure
15. Indemnification
16. Limitation of Liability
17. Disclaimers
18. Representations and Warranties
19. Notices and Variations
20. Assignment
21. Entire Agreement
22. Severability
23. No Waiver
24. Applicable Law, Dispute Resolution, and Governing Law
25. Counterparts
26. Miscellaneous

This **BET9JA AGENCY AGREEMENT** (the “**Agreement**”) is made this **__25-07-2023** (the “**Effective Date**”),

BETWEEN

KC Gaming Networks Ltd, a limited liability company incorporated under the Laws of the Federal Republic of Nigeria with registration number 1035305, and having its “**Registered Office**” at **Tomi’s House, 9 Funsho Williams Avenue, Ojuelegba Surulere** (hereinafter referred to as “**Bet9ja**” which expression shall, where the context so admits, include its successors, executors and permitted assigns)

AND

EYONG SUNDAY SUNDAY, a Nigerian resident (hereinafter referred to as the “**Agent**” which expression shall, where the context so admits, include its successors, executors and permitted assigns) with

- ID No: **_9080314**
- Resident in: **_2 OTALOSI CLOSE, IJIMAN**

Bet9ja and the Agent may be individually referred to as the “**Party**” and collectively referred to as the “**Parties**”.

WHEREAS

Bet9ja is duly licensed by the “**National Lottery Regulatory Commission**” (“**NLRC**”) and several other Nigerian “**State Gaming Authorities**” to operate the business of “**Gaming**” in Nigeria.

Bet9ja is authorised by the NLRC and these other State Gaming Authorities to engage agents to conduct the “**Services**” herein envisaged under this Agreement.

The Agent wishes to be appointed by Bet9ja as an agent to perform the Services, which primarily involve the promotion and selling of Bet9ja’s “**Products**” via designated “**Premises**”.

The Agent undertakes that before commencing any work as a Bet9ja agent he/she:

- i. Shall legally rent or purchase a suitable Premises in accordance with the declaration in **Schedule F** and shall ensure that he/she is capable of meeting all the Bet9ja requirements, rules, regulations and policies as referred to in this Agreement, and as may be reviewed from time to time.
- ii. Shall acquire all the staffing resources and equipment necessary and appropriate to make the Products available to the public.
- iii. Shall comply with all the necessary requirements (such as technical, organisational, and financial) needed for exercising his/her role as an agent.

- iv. Hereby declares that he/she has full knowledge of the market potential in the “**Reference Area**” and the consequent presumed volume of “**Bets**” to be collected at the Premises.
- v. Notwithstanding the status as agent for the purpose of the provision of the Services, he/she is an “**Independent Contractor**” by virtue of the fact that he/she and Bet9ja are entirely separate, independent, and autonomous.
- vi. Is desirous of becoming an agent of Bet9ja and thus will accept the terms and conditions of this Agreement, which is a legally binding agreement between Bet9ja and the Agent. He/she further understands that this Agreement carries legal obligations and financial penalties in the event of him/her failing to meet his/her obligations and as such pledges not to enter this Agreement to become an agent of Bet9ja unless he/she is seriously committed to the agency work and intends to respect and adhere strictly to his/her obligations towards Bet9ja.
- vii. Has submitted a completed “**Agency Application**” which Bet9ja has evaluated and notified the Agent of his/her acceptance to Bet9ja’s “**Agency Scheme**”. He/she further recognises that Bet9ja is entitled to reject their acceptance to the Agency Scheme if it determines, at its sole discretion, that the Agent is no longer suitable for Bet9ja’s purpose. In such case, the Agent shall have no right to appeal any decision made by Bet9ja to reject his/her application.
- viii. Is aware that the approval of the Bet9ja “**Board**” or of its delegated authority is required for him/her to act as an agent of Bet9ja.
- ix. Shall disclose any relationship with a member of the Board of Bet9ja or any employee of Bet9ja.
- x. Accepts that Bet9ja may suspend this Agreement at its sole discretion without notice and without any compensation.
- xi. Understands that the Products being offered under this contract are as defined in **Schedule B**.
- xii. Will raise funds for the initial “**Deposit**” required by Bet9ja, as disclosed in **Schedule E**. Such funds will be used as the initial balance for the Agent to start accepting Bets, pay any “**Winnings**”, and for any other use as described in **Schedule E**, which can be reviewed from time to time.
- xiii. Has read this Agreement, has had an opportunity to consult with his/her own legal advisors, and agrees to all its terms and conditions.
- xiv. Has independently evaluated the desirability of participating in the Bet9ja Agency Scheme and he/she is not relying on any representation, guarantee, or statement other than as set forth in this Agreement.

NOW THEREFORE

In consideration of the Agent:

- i. Paying the Deposit in accordance with Schedule E;
- ii. Providing Bet9ja with his/her bank account details;
- iii. Giving consent to Bet9ja to issue a “**third-party debt liability order**” and/or begin third-party proceedings against the Agent to recover any outstanding debt and/or penalty in the event of any breach of the terms and conditions of this Agreement by the Agent; receipt of which will be acknowledged by Bet9ja;
- iv. Pledging to comply strictly with all his/her obligations under this Agreement and as may be communicated by Bet9ja from time to time.

The Parties agree as follows:

1. Definitions

The following definitions apply unless the context requires otherwise:

- “**Agency**”: shall refer to the scheme under which Bet9ja grants the right to the Agent to act as its non-exclusive agent in any part of Nigeria to perform the Services outlined in this Agreement in accordance with its terms and conditions.
- “**Agency Application**”: shall mean the process which a prospective agent will need to undergo in order to become a Bet9ja Agent.
- “**Agency Scheme**”: shall mean the Bet9ja agency scheme that accredits and accepts the Agent who has acquired the requisite facilities and Premises from which he/she can provide in a safe and reasonable manner the Services to the “**Customers**”, as required under this Agreement.
- “**Agent**”: shall mean an individual or corporate entity authorised to act on behalf of Bet9ja as its non-exclusive agent in Nigeria for the sole purpose of carrying out the Services outlined in this Agreement and in accordance with its terms.
- “**Agreement**”: shall refer to this document in which Bet9ja and the prospective Agent specifically agree to the terms and conditions of their professional relationship.
- “**AML Compliance Receipt**”: shall refer to the Customer verification checks that are required to be performed to confirm legal ownership and origin of the funds staked and (if applicable) of the consequential Winnings, to confirm the identity of the Customer, and to comply with the relevant “**AML/CFT Laws and Regulations**”.
- “**AML Unit**”: shall refer to the team at Bet9ja that is responsible for handling Anti-Money Laundering matters.

- **“AML/CFT Compliance Policies”**: shall refer to Bet9ja’s internal Anti-Money Laundering and Combating the Financing of Terrorism (AML/CFT) Compliance Policies.
- **“AML/CFT Laws and Regulations”**: shall refer to the Money Laundering (Prevention and Prohibition) Act 2022 , Economic and Financial Crimes Commission (Anti-Money Laundering, Combating the Financing of Terrorism and Countering Proliferation Financing of Weapon of Mass Destruction for Designated Non-Financial Businesses and Professions and other Related) Regulations 2022 and any successive regulation as amended, along with any set of additional government laws, regulations, and other practices that are intended to (i) uncover efforts to disguise illicit funds as legitimate income, and (ii) restrict access to funding and financial services for those whom the government designates as terrorists.
- **“Bet”, “Betting”**: shall mean the staking or risking by any person of a sum of money on the basis of the outcome of a contest of others, a sporting event, or a game of chance upon an agreement or understanding that the person or another person will receive a sum of money in the event of a certain outcome. It shall also refer to the sector in which Bet9ja operates.
- **“Bet9ja Operations”**: comprises the activities involved in the day-to-day functions of the business conducted by Bet9ja for the purpose of generating profits.
- **“Bet9ja’s Customer Agreement”**: shall mean the agreement with the end-user, more particularly described throughout this Agreement which details the Betting relationship and governed by the **“Terms and Conditions”** applicable to the particular games played by the Customers.
- **“Bet9ja’s own marketing efforts”**: shall mean the direct marketing activities of Bet9ja.
- **“Bet9ja’s Website”**: The internet website on which Customers can register and use the Products.
- **“Board”**: shall mean the board of directors and thus governing body of Bet9ja.
- **“Brand”**: shall mean the Bet9ja brand, its mark (symbol or sign) or design or some combination of these used to identify the Products and to differentiate them from the offering of its competitors.
- **“Brand Promotion”**: Shall refer to that element of marketing mix which is designed to inform, remind, persuade and influence the Customers so that they place Bets on the Products. It is applied and persuasive communication used for informing and reminding the Customers of the Brand.
- **“Branding Materials”**: shall refer to all the advertising materials (e.g. banners, signage and advertisement material, posters) which directly or indirectly make reference to the Brand and which are used by Bet9ja for its marketing activities.

- **“Business of Bet9ja”**: shall mean accepting, recording, or registering Bets, or carrying on a game or any other lottery, or playing any game of chance, for money, through the platform of Bet9ja.
- **“Commission scheme”**: shall mean the scheme outlined in **Schedule A** where a sum of money is paid to the Agent for every Bet that he or she sells. The commission the Agent receives will depend on the amount he or she sells.
- **“Compensation”**: shall indicate the form in which Bet9ja remunerates the Agent for performing the Services outlined in this Agreement.
- **“Customer”**: shall refer to any person who places a Bet on the Products of Bet9ja after having acknowledged **“Bet9ja’s Customer Agreement”**.
- **“Data Protection Laws”** means any law, statute, subordinate legislation, regulation, order, mandatory guidance or code of practice, judgment of a relevant court of law, or directives or requirements of any Regulatory Agency which relates to the protection of individuals with regard to the processing of Personal Data to which a Party is subject including the NDPR and any statutory modification or re-enactment thereof and the NDPR.
- **“Deposit”**: shall refer to the money from the Agent as security for the Bet9ja **“Licensed Materials”** and Betting products.
- **“Effective Date”**: shall mean the date in which this Agreement is signed.
- **“Events”**: shall refer to sporting and virtual sporting events covered by Bet9ja and for which odds and combinations of Bets will be provided to Customers.
- **“Fraud”**: is anything intended to deceive others, typically by unjustifiably claiming or being credited with accomplishments or qualities comprising sharp practice, cheating, swindling, trickery, artifice, deceit, deception, double-dealing, duplicity, treachery, chicanery, skulduggery, imposture, embezzlement etc.
- **“Gaming”**: shall refer to the business sector in which Bet9ja operates and in which staking or risking by any person of a sum of money on the basis of the outcome of a contest of others, a sporting event, or a game of chance takes place upon an agreement or understanding that the person or another person will receive a sum of money in the event of a certain outcome.
- **“Gaming Law”**: shall refer to any law, present and future, at either state or federal level, which is applicable to the Betting industry.
- **“Independent contractors”**: shall mean a person who is contracted to do work for Bet9ja as an agent according to his or her own processes and methods; the Agent is not subject to Bet9ja's control framework except for what is specified in a mutually binding agreement for a specific job and the said Agent is responsible for the entirety of his or her taxes, business rates and other fees associated with their business.
- **“Intellectual Property”**: shall mean Bet9ja’s collective reference to all rights, priorities and privileges relating to intangible property, including copyrights,

copyright licenses, patents, patent licenses, trademarks, trademark licenses, technology, know-how and processes, and all rights to sue at law for any infringement or other impairment thereof, including the right to receive all proceeds and damages therefrom.

- **“Language Discrepancy”**: shall mean differences in language translation of words.
- **“Laws and Regulations”**: shall mean any and all applicable current or future laws, rules, regulations, ordinances, codes, orders and permits of any and all federal, state and local governmental and quasi-governmental bodies, agencies, authorities and courts having jurisdiction.
- **“Licensed materials”**: shall mean the Products and **“Branding Materials”**.
- **“Lottery Act”**: shall refer to the National Lottery Act of 2005 as may be amended or repealed from time to time which provides for the operation of the national lottery and the establishment of the NLRC charged with responsibility for the regulation of the business of national lottery in Nigeria as well as the establishment of a National Lottery Trust Fund.
- **“Manuals”**: shall refer to Bet9ja’s internal policies and procedures’ documents.
- **“National Lottery Regulatory Commission”, “(NLRC)”**: is the body that regulates gaming activities at the Federal level in Nigeria.
- **“Nigerian Data Protection Regulation (NDPR)”**: shall refer to the Nigerian Data Protection Regulation of 2019 as may be amended or repealed from time to time which makes provision for the rights of data subjects, the obligations of data controllers and data processors, and transfer of data to a foreign territory amongst other data protection related matters.
- **“Nigerian Financial Intelligence Unit Act”**: shall refer to the Nigerian Financial Intelligence Unit Act of 2018 as may be amended or repealed from time to time which establishes the Nigerian Financial Intelligence Unit as the central body in Nigeria responsible for receiving, requesting, analysing and disseminating financial intelligence reports and other information to law enforcement, security and intelligence agencies and other relevant authorities.
- **“Non-exclusive Agent”**: shall mean an agent authorised on a non-exclusive basis to exercise a right which would otherwise be exercisable directly by Bet9ja.
“Opening Date”: shall refer to the date in which the Agent shall commence his/her operations as a Bet9ja Agent.
- **“Party”, “Parties”**: unless stated otherwise, shall refer to the parties to this Agreement (i.e. Bet9ja and the Agent).
- **“Personal Data”**: Any information that relates to an identified or identifiable living individual.
- **“Personnel”**: shall mean employees or contractors of the Agent and not of Bet9ja.

- **“Premises”**: shall refer to any location owned or leased by the Agent, and approved by Bet9ja, from where the Agent runs the Agency by offering the Products to the Customers.
- **“Products”**: shall mean the products Bet9ja will make available for the Agent to promote and sell to the Customers. These are defined in the Products Schedule (**Schedule B**) of this Agreement and can be modified by Bet9ja from time to time.
- **“Qualified person”**: shall refer to an employee or contractor of the Agent who is authorised by the Agent to conduct the day-to-day operations of the Agency on their behalf.
- **“Reference Area”**: shall refer to the area in which the Agent will set up the Premises and which will be at least 500 (five hundred) metres away from the premises of other existing agents.
- **“Registered Office”**: is the office address of Bet9ja recognised and reflected by the company in accordance with the Companies and Allied matters Act 2020 or any amendment thereto.
- **“Regulatory Agencies”**: shall refer to all relevant independent governmental bodies established by legislative act or law in order to set standards in a specific field of activity, or operations, in the private sector.
- **“Responsible Gambling Code of Conduct”**: shall refer to Bet9ja’s responsible gambling policy as outlined on **“Bet9ja’s Website”**.
- **“Services”**: shall mean promoting and selling the Products at the Premises where the Agent has requisite legal tenancy and which have met all the Bet9ja requirements, rules and in the said chosen location and as detailed in this Agreement.
- **“State Gaming Authorities”**: entities responsible for regulating betting industry at a state level.
- **“Super-Agent”**: is a senior agent of Bet9ja that has setup and expanded his/her operations as a Bet9ja agent and who is authorised to act on behalf of Bet9ja for the purpose of training, providing support and assistance to agents under the umbrella/network of the said **“Super-Agent”**.
- **“Term”**: Shall indicate the period during which this Agreement is enforced, which will begin on the Effective Date, upon acceptance into the Agency Scheme, following execution of this Agreement by each Party, and which will end upon termination by either Party, always in accordance with the provisions of this Agreement.
- **“Terms and Conditions”**: in relation to the Products, it shall refer to the terms and conditions of specific products as outlined on Bet9ja’s Website.
- **“Third-party debt liability order”**: an order whereby a judgement debt is enforced by ordering a third party to pay money, otherwise owed to the debtor, directly to the judgement creditor.

- **“Trading hours”**: shall refer to the hours in which the Agent must keep open the Premises for the business of the Agency to the public.
- **“Web Account”**: shall mean the online user account with which the Agent performs the Services, monitors his/her own performance, accepts Bets from Customers, and in which his/her **“Compensation”** is allotted.
- **“Winnings”**: shall mean the amount earned by a Customer from a successful Bet.
- **“Written approval”**: shall mean an official and binding agreement signed either on paper or digitally by the parties involved, which is recognised and legally binding.

2. Appointment and Scope of Authority

Bet9ja grants the right to the Agent to act as its **“non-exclusive agent”** in Nigeria to operate the **“Agency”** and thus provide the Services, which primarily involves the promotion and sale to the public of the Products at the Premises, in accordance with the terms and conditions of this Agreement.

The scope of authority conferred by this Agreement upon the Agent is limited to those matters that relate to the operation of the Agency. The Agent does not have the authority to bind, represent, act or speak on behalf of Bet9ja in any manner whatsoever beyond what is expressly set out in this Agreement.

3. Obligations of Agent

The Agent hereby agrees to:

- i. Commence and continue to operate the Agency throughout the **“Term”** of this Agreement.
- ii. Keep open the Premises and offer the Products to the public in a continuous manner, on the days and the hours as specified in **Schedule D** to this Agreement.
- iii. Promote and develop the business of the Agency to ensure there is an adequate level of collection of Bets at the Premises and that the availability of the Services is such that it will meet the requisite volume as may reasonably be expected from a Bet9ja agency in the Reference Area.
- iv. Other than as provided for in this Agreement or as communicated by Bet9ja, cover at his/her own expense all costs and expenditures related to the operation and promotion of the Agency, including but not limited to: rent, utility bills, employees and contractors’ costs, maintenance and all other operational expenses.

- v. Comply with all the obligations imposed by the relevant “**Regulatory Agencies**” and authorities in relation to Bet9ja’s sports betting licence and further licences that may be issued, payment of levies, taxes and rates and other legal duties and obligations imposed by relevant “**Laws and Regulations**”.
- vi. Ensure that by the “**Opening Date**” all permits, licences, and requirements to operate the Agency as required by the applicable law are obtained and displayed at the Premises in order to carry out the Services and to display all material and notices that Bet9ja and/or local authorities require to be displayed.
- vii. Operate the Agency as his/her primary activity and offer only the Services at the Premises. To not engage in or allow any line of business, occupation or services on the Premises other than the business of the Agency as stipulated in this Agreement, without the prior written approval of Bet9ja.
- viii. Together with his/her Personnel (i.e. the Agency’s “**Personnel**”), comply with the provisions of all Laws and Regulations regulating the Gaming industry in Nigeria and with the internal policies released by Bet9ja from time to time. Such Laws and Regulations, and internal policies include:
 - a. The “**Lottery Act**” and relevant Laws and Regulations made thereto and any subsequent “**Gaming Law**” made at the Nigerian Federal and/or State level.
 - b. AML/CFT Laws and Regulations including but not limited to the requirements specified in clause 9 of this Agreement and Bet9ja’s “**AML/CFT Compliance Policies**”.
 - c. Bet9ja’s “**Responsible Gambling Code of Conduct/Policy**”.
 - d. Bet9ja’s “**Manuals**” and global best practices relevant to the provision of the Services.
 - e. Bet9ja’s directions in relation to the operation of the Agency, including the addition or removal from the Services to be offered at the Premises.
- ix. Effect settlement to Bet9ja without delay when required to do so under this Agreement.
- x. The Agency’s Personnel being employees or contractors of the Agent and not of Bet9ja. The Agent assumes sole responsibility for the welfare, remuneration, and emoluments of the Personnel. The Agent also has sole responsibility to ensure that the Personnel adopt exemplary behaviour and professionalism in the course of the rendering of the Services, are trained on the fundamental compliance requirements applicable and comply with all

such legal requirements, including but not limited to their good conduct and professional behaviour.

- xi. Have read and understood the Terms and Conditions of the Products.
- xii. Ensure Branding Materials including signage and banners are displayed at the Premises and are clearly visible to all Customers at all times.
- xiii. Observe the obligation to respect the prohibition of access by persons below the age of 18 (eighteen) years within the Premises for any reason whatsoever and also not to knowingly accept Bets from minors or from persons placing Bets on behalf of minors.
- xiv. Display all material relating to the rules on anti-money laundering as described in **Schedule C** to this Agreement and to follow all directives issued by Bet9ja or any relevant authority in this regard from time to time.
- xv. Accept Bets without adding surcharges on Winnings or reducing pay-outs to Customers.
- xvi. Keep all payment receipts of Winnings for Bet9ja to verify from time to time.
- xvii. Fulfil with punctuality all deposits and payments under the contract and comply with the provisions regarding the keeping and handling of the “**Web Account**”.
- xviii. Not transfer all or part of its business to any third-party Betting shop during the period of this Agreement without the prior written consent of Bet9ja.
- xix. Comply in full with any additional obligations and commitments, including the minimum volumes of Bets on a daily, weekly and monthly basis as described in **Schedule D** to this Agreement.
- xx. Not stop the practice of taking Bets without giving prior notice of termination in writing to Bet9ja and without waiting for the expiry of the notice period provided for herein.
- xxi. Refrain from engaging in conduct intended to negatively affect the operation and communication flows with Bet9ja.
- xxii. Commit to the Agency knowing that financial and legal penalties shall arise if he/she does not commit to being an effective agent meeting the aforementioned obligations.
- xxiii. Not change the location of the Premises without the prior written consent of Bet9ja.

- xxiv. Be of good character and reputation and not engage in unethical or illegal behaviour during the Term of this Agreement and must immediately inform Bet9ja of any event that would negatively affect the Agent's good character and reputation, including but not limited to investigations into, or convictions for, unethical or illegal conduct.
- xxv. Not make any representations, statements or warranties about the Agency or Bet9ja other than those permitted by this Agreement or as Bet9ja may authorise in writing. Not to defame or otherwise impugn the reputation of Bet9ja, or knowingly allow its Personnel to do so.
- xxvi. Irrevocably authorise Bet9ja's representatives to enter the Premises to inspect the operation of the Agency at any "**trading hour**" of the day or any other time as may be determined by Bet9ja.
- xxvii. Have a Web Account associated to them and to be solely responsible for the technical operation of his/her facilities at the Premises.
- xxviii. For the smooth running of the Agency, the Agent shall:
 - a. Be responsible for ensuring that an adequate level of professional staff is maintained at all times and in particular that at least 1 (one) "**Qualified Person**" is present at the Premises during business opening hours.
 - b. Ensure that all employees and self-employed workers at the Premises are in a contractual relationship formalised in accordance with the Law and which is consistent with the role, position and actual activity of each employee and self-employed individual.
 - c. Ensure that all Personnel engaged shall have a neat appearance at all times and be responsible and courteous to Customers.
 - d. At all times keep the Premises clean and tidy.
 - e. Introduce without delay any improvement or modification to the Premises and the work activity therein in accordance with the recommendations made by Bet9ja.
 - f. **Ensure that Customers receive 100% (one hundred percent) of their Winnings and that no deductions are made from such Winnings.** Any deduction from a Customer's Winnings shall be considered as theft and "**Fraud**" and will be subject to the strongest legal action from Bet9ja which may also include immediate termination of this Agreement, recourse to legal proceedings as well as any other legal remedies applicable for breach and damages resulting therefrom.

- g. Ensure no payment is made to ANY employee of Bet9ja or to its Directors in order to facilitate grace or favour or advantage of any kind as it relates to the provision of the Services or the Products promoted or sold to the Customers. ANY request for such payment must be reported immediately to speakup@bet9ja.com.
- xxix. Observe the Data Protection Laws.
- xxx. Ensure that, where he/she receives any Personal Data, he/she fully complies with the provisions of the Data Protection Laws and only deals with the data to fulfil his/her obligations under this Agreement. The Agent shall not divulge the personal data of the customers to a third party unless as prescribed under this Agreement.
- xxxi. Abide by the declarations as stipulated in **Schedule G** herein and other directives that may be issued to him from time to time.

Note: Every agent will have a Super-Agent to which he or she reports to and this Super-Agent shall be considered the first point of contact for resolution of issues, and answering of queries.

4. Obligations of Bet9ja

Bet9ja hereby agrees to:

- i. Provide a functioning Web Account in order for the Agent to effect transactions.
- ii. Provide regular “**Events**” to ensure the Agent and Customers have a broad range of products to choose from.
- iii. Recognise and acknowledge all the obligations that it has to comply with in relation to the NLRC and State Gaming Authorities. Therefore, Bet9ja agrees to do its best to provide all reasonable cooperation in order to assist and enable compliance with these obligations.
- iv. Provide the initial training and ongoing support to the Agent and its Personnel.
- v. Deal promptly with technical issues under the control of Bet9ja.
- vi. Provide administrative assistance for the proper management and commercial operations for the acceptance of Bets.
- vii. Produce and make accessible through the back office, the statements relating to the number of Bets, amount of Stakes, amount of Winnings, and Bets which were paid out, lost or voided, and the amount of Compensation the Agent is entitled to.

- viii. Pay Compensation to the Agent for the running of the Agency in accordance with the provisions of clause 6.
- ix. Refrain from accepting a new agent within 500 (five hundred) metres of an existing agent. This policy may be changed in the event of the failure of the existing agent to meet the minimum sales obligations for two months in a row. Bet9ja retains the right to seek a new agent in that area.
- x. Make available to the Agent, for the purpose of “**Brand Promotion**”, Bet9ja’s advertisements and signage materials, including banners and handbills which the Agent will display at the Premises, provided the Agent abides by the terms and conditions of this Agreement.
- xi. Make readily available to the Agent all Bet9ja Manuals and inform him/her when a revised version is released so the Agent can always be up to date.

5. Term

The Term of this Agreement will begin on the Effective Date, upon acceptance of the Agent into the Agency Scheme, following execution of this Agreement by each Party.

The Term will end when this Agreement is terminated by either Party, in accordance with the provisions of this Agreement.

6. Compensation

The Parties agree that the Agent shall be compensated in the manner set out in **Schedule A** of this Agreement. Bet9ja may however, at its sole discretion, review the Compensation as outlined in **Schedule A** and notify the Agent of such changes in the manner outlined in the **Notices and Variations** clause of this Agreement.

- i. Notwithstanding the foregoing, the Agent acknowledges and agrees that a different payment scheme may apply to other agents who are already being paid by Bet9ja in accordance with an older or alternative payment scheme or in other peculiar cases as may be determined at Bet9ja’s sole discretion.
- ii. Bet9ja retains the right to amend the manner by which the Agent shall be compensated as Bet9ja shall see fit.
- iii. All payments shall be made to the Agent on a weekly basis directly to their Web Account.
- iv. The Agent will be free to request a withdrawal of their funds from their Web Account subject to any agreement in place which supersedes such a request. In the event that the Agent provides Bet9ja with incorrect or incomplete details in relation to his/her preferred payment method and Bet9ja is not able to transfer the funds to the Agent, Bet9ja reserves the right to subtract from the funds due to the Agent an amount of money to reflect the required investigation and additional work created by the Agent having provided incorrect or incomplete details.

- v. Bet9ja shall be entitled to set-off from the amount due to be paid to the Agent any associated costs related to the transfer of such amount, payment processing commissions and fees paid to the processing service provider upon any transaction of the money.
- vi. Bet9ja retains the right to review all amounts paid and payable to the Agent for possible Fraud, whether such Fraud is on the part of the Customer or on the part of the Agent.
- vii. In any period of time during which Bet9ja undertakes a review for possible Fraud, Bet9ja shall have the right to withhold any amount accrued in the Agent's favour. Such accruals will not be paid until such time that the review is concluded. Any incidence of Fraud on the Agent's part constitutes a breach of this Agreement, and Bet9ja retains full authority to terminate this Agreement immediately in the event of such breach.
- viii. It is further agreed that in the event that Bet9ja deems that Fraud has occurred, either on the Agent's part or on the part of a Customer, the Agent shall not be entitled to receive any outstanding balance which has accrued to his/her benefit at such time in relation to the same whether such balance were generated through Fraud or otherwise. Bet9ja retains the right to set-off from future amounts payable to the Agent any amounts already received by the Agent which can be shown to have been generated by Fraud.
- ix. The Agent is required to provide accurate details in regard to the manner and information relating to his/her preferred method of receiving payments. If inaccurate details are provided, Bet9ja shall not be held liable for the Agent's delayed receipt of payment.

7. Settlement

The Agent is required to:

- i. Review, on a daily basis, funds available and monies he/she owes to Bet9ja.
- ii. Immediately pay monies owed to Bet9ja on a DAILY basis (Monday to Friday), in the manner specified by Bet9ja.

In case of a delay in payment, and without prejudice to further action, Bet9ja will be entitled to suspend the Agent immediately and without notice.

8. Furthermore, Bet9ja reserves the right to use all legal means necessary to pursue debts, interests and associated costs owed by the Agent.**Intellectual Property Ownership**

The Agent hereby acknowledges that Bet9ja retains the sole and exclusive ownership of any trademark, trade name, or any other "**Intellectual property**" belonging to, or associated with Bet9ja which the Agent may utilise in operating the Agency and providing the Services under this Agreement.

Specifically:

- i. By entering into this Agreement, the Agent is accepting that Bet9ja shall grant the Agent a non-transferable, non-exclusive, revocable licence to place Bet9ja banners on the Premises for the Term of this Agreement, and to use Bet9ja's logos, trade names, trademarks, service marks and similar identifying material, solely for the purpose of promoting Bet9ja's "**Brand**".
- ii. The Agent is not permitted to alter, modify or change the Licensed Materials in any way whatsoever.
- iii. The Agent is not allowed to use any Licensed Materials for any purpose whatsoever other than promoting the Brand.
- iv. The Agent is not permitted to use the Licensed Materials in any manner that is disparaging or that otherwise portrays Bet9ja or anyone else negatively. Bet9ja reserves all of its intellectual property rights over the Licensed Materials.
- v. The Agent acknowledges that, by reason of this Agreement or his/her activities hereunder, he/she has not acquired and will not acquire any right, interest or title of any nature in any such copyright, trademark, or service belonging to, or associated with the Brand.

This section remains in full force and effect even after termination of the Agreement by either Party.

9. Money Laundering Obligations

- i. Bet9ja is required by Law to capture and report to the Special Control Unit Against Money Laundering ("**SCUML**") cash Stakes and Winnings that are equal to or above the regulatory threshold set out in Section A (paragraph i) of **Schedule C** of this Agreement. If a Stake or Winning equal to or exceeding this threshold is settled through bank transfer, Bet9ja is required to keep a record of this; if, however, this is settled in cash, it is to be reported to the SCUML.
- ii. The Agent hereby undertakes to report any Stakes or Winnings at the Premises that are equal to or above the regulatory threshold set out in Section A (paragraph i) of **Schedule C** of this Agreement and that have been paid in cash.
- iii. Bet9ja is required by Law to capture and report all Stakes placed and Winnings that are equal or above the amount specified in Section A (paragraph ii) of **Schedule C** of this Agreement.
- iv. The Agent shall collate and report Stakes and/or Winnings that are equal to or above the amount specified in Section A (paragraph ii) of **Schedule C** of this Agreement regardless of payment medium.
- v. In both scenarios outlined in Section A (paragraphs i and ii) of **Schedule C**, all Customers involved shall fill the "**AML Compliance Receipt**". At the end of every week, the Agent shall collate such receipts and upload them on their Web Account for the "**AML Unit**" of Bet9ja to review and prepare for adequate regulatory reporting and onward transmission to SCUML.

- vi. Subject to the provision of this Clause, the Agent also covenants to abide by and implement other Bet9ja's AML Policies outlined in **Schedule C** of this Agreement or any other AML policies as may be determined by Bet9ja from time to time in accordance with the relevant Laws and Regulations.
- vii. In accordance with the provisions of Nigerian Financial Intelligence Unit Act, the Agent is equally responsible for reporting any transaction that may appear suspicious when taking into account the amount, volume, and other circumstances surrounding the transaction. The Agent shall use the appropriate template, as provided by Bet9ja's Legal team, to report the suspicious transaction through legal@bet9ja.com.
- viii. Non-compliance with any requirements of this clause by the Agent shall lead to immediate termination of this Agreement and the agency relationship between Bet9ja and the Agent.

10. Relationship

The Agent and Bet9ja are “**Independent contractors**”. Nothing in this Agreement shall be construed to create any other type of relationship between the Parties including but not limited to partnership, joint venture, franchise, sales representative, and employment relationship as it relates to this Agreement and the Products to which it is applicable.

11. Exclusivity and Non-competition

The Agent agrees to be considered a non-exclusive agent of Bet9ja. The Agent shall:

- i. Not carry out any activity in competition with or similar to the “**Business of Bet9ja**” during the continuance of this Agreement and six months after its cessation.
- ii. Not carry out activities as described in the Services on behalf of companies/entities in competition with Bet9ja.
- iii. Not use the Premises to carry out any activity other than those stipulated by this Agreement (i.e. promoting and selling the Products), without the prior written approval of Bet9ja.
- iv. Not own any holding, directly or indirectly, in Bet9ja or any entity in competition with Bet9ja. In the event that this is discovered, Bet9ja reserves the right to pursue damages and terminate this Agreement forthwith.

12. Suspension and Termination

- i. Bet9ja reserves the right to suspend the Agent's rights and obligations under this Agreement at any time. The Agent will be informed of the reason for the suspension and the actions required to lift it.
- ii. When suspended, the Agent must immediately cease all Bet9ja related operations at the Premises until further notice without prejudice to all obligations accruing prior to the suspension.

- iii. Within 30 (thirty) days after the effectiveness of this Agreement, Bet9ja will conduct a verification of the Agent's activities with regards to its Agency. In the event that the Agent fails to fulfil his/her obligations towards Bet9ja and has not commenced full active operations, the Agent shall face termination of this Agreement and without prejudice, action for recovery of equipment provided by Bet9ja and damages relating to the time invested by Bet9ja for training and support services shall be commenced against the Agent.
- iv. At any time, Bet9ja may immediately terminate this Agreement by giving the Agent 10 (ten) days' written notice of termination, and such notice may be served via e-mail or written letter.
- v. Where a breach of the terms or conditions of this Agreement occurs, the Agreement shall be terminated immediately and without notice. Bet9ja reserves the right to withhold the Agent's final Compensation, if any, for a reasonable time to ensure that the correct amount is paid and all necessary Bet9ja materials are released to Bet9ja by the Agent.
- vi. Upon the termination of this Agreement for any reason, the Agent shall:
 - a. Immediately cease the use of, and remove from, the Premises anything that may link or connect such Premises to Bet9ja, and return all Licensed Materials back to Bet9ja and any other names, marks, symbols, copyrights, logos, designs, or other proprietary designations or properties owned, developed, licensed or created by Bet9ja and/or provided by or on behalf of Bet9ja pursuant to this Agreement or in connection with the Agency Scheme.
 - b. Immediately destroy or deliver to Bet9ja any Bet9ja papers, equipment, promotional material or Bet9ja property that are in his/her possession. Following the termination of this Agreement and Bet9ja's payment to the Agent of all Compensation due at such time of termination, Bet9ja shall have no obligation to make any further payments to the Agent.
 - c. Be obliged not to perform, directly or indirectly, any activity in competition with the Business of Bet9ja for a period of 6 (six) months.

13. Confidentiality

- i. The Parties acknowledge that during the course of this Agreement and in order for the Agent to perform the Services, Bet9ja may disclose to the Agent certain proprietary information, including trade secrets, industry knowledge, and other information which Bet9ja deems to be confidential (herein referred to as "Confidential Information").
- ii. Confidential information shall include:
 - a. All information or materials of whatever nature relating to this Agreement and disclosed by Bet9ja through written materials, and oral or written statements; including but not limited to documents, techniques and practices, tools, specifications, inventions, patents, trademarks, software, drawings, and programs.

- b. Trade secret information including all formulae, pattern, designs, processes, methods, or other information that is not known, accessible, and/or easily ascertainable by the public.
- iii. Confidential information shall not include data or information that:
 - a. Is available to the public domain at the time of disclosure.
 - b. Has entered the public domain through no fault of the Agent.
 - c. Has been provided by Bet9ja to third parties without any restrictions.
 - d. Is required by Law or legal process to be disclosed.
- iv. Consequently, the Agent agrees that such Confidential Information is of value and that it shall remain, at all times, strictly confidential and secret and shall not be shared and/or utilised, directly or indirectly, by the Agent for his/her own business purposes or for any other purpose except and solely to the extent of providing the Services described in this Agreement.
- v. The Agent further agrees to:
 - a. Take proper measures to ensure there is no breach of such Confidential Information.
 - b. Not make public, in whole or in part, such Confidential Information.
- vi. This section shall remain in full force and effect even after the termination of the Agreement by either Party.
- vii. The Agent also agrees to keep the terms and conditions of this Agreement, including the provision of any Schedules relating to this Agreement, confidential and shall not make a public disclosure of any such terms and conditions.

14. Force Majeure

- i. No Party shall, before Termination of this Agreement, be liable for any failure to fulfil any obligation arising from this Agreement if such fulfilment has been delayed, hindered, interfered with, or prevented by “**Force Majeure**” events, which for the purposes of this Agreement shall include circumstances such as:
 - a. Circumstances that are beyond the control of either of or any of the Parties.
 - b. Circumstances that either of or any of the Parties would have not, within reason, been able to avoid or overcome.
 - c. Riots, epidemics, pandemics, cyber-attacks, civil disorder, acts of war, or other acts which may reasonably affect the ability of either of or any of the Parties to fulfil their obligations under this Agreement.

The party claiming to be affected by force majeure shall notify the other party no later than 10 (ten) days after the occurrence of force majeure and shall take all reasonable steps to minimize the damage caused by force majeure. If force majeure lasts longer than 60 (sixty) days and the parties fail to reach a resolution on the modalities for continuing the performance of the Agreement, either party has the right to terminate this Agreement by giving written notice to the other Party.

15. Indemnification

The Agent hereby agrees to indemnify, defend and hold harmless Bet9ja, its shareholders, officers, directors, employees, agents, successors and assigns, from and against any and all claims, losses, liabilities, damages or expenses (including legal fees and costs) of any nature whatsoever incurred or suffered by Bet9ja and the Agent (collectively the "**Losses**"), in so far as such Losses (or actions in respect thereof) arise out of or are based on:

- i. The breach of this Agreement by the Agent or any of its Personnel
- ii. The breach by the Agent or its Personnel of any representation or warranty made by the Agent herein;
- iii. The breach of any conditions of the licence issued to Bet9ja by NLRC and the State Gaming Authorities; or
- iv. Any claim related to the Agency.

The Agent hereby expressly indemnifies Bet9ja from any liability for failure to comply with all the rules in this Agreement, and from any and all claims, damages, actions and/or omissions that may be advanced against the same Agent by third parties in relation to the Services rendered under this Agreement.

16. Limitation of Liability

- i. Bet9ja shall not be held liable for any interruptions in the "**Supply of Service**" in anyway whatsoever including but not limited to, those dependent on suppliers of telecommunications network and their sub-contractors as well as by the suppliers of technological equipment and their sub-contractors and/or Bet9ja's employees and contractors or by Force Majeure.
- ii. Under no circumstances shall Bet9ja be liable to the Agent or any third-party for any damage, loss, claim or expenses, whether direct, indirect, special or consequential and howsoever caused, or any loss of revenue, profits, business, or debts, or any costs of delay, or failure of delivery, suffered by the Agent, arising in connection with this Agreement, even if Bet9ja has been advised of the possibility of such damages.
- iii. Bet9ja's aggregate liability arising with respect to this Agreement shall not exceed the total amount outstanding and payable to the Agent at the time of the claim.

17. Disclaimers

- i. Bet9ja disclaims all warranties unless otherwise stated in this Agreement. Furthermore, Bet9ja makes no express or implied warranties or

- representations with respect to all warranties of any kind unless otherwise stated in this Agreement, including, but not limited to, implied warranties of fitness for a particular purpose, merchantability, non-infringement, title, satisfactory title, or any implied warranties that are statutory or arise out of a course of performance, dealing, or trade usage.
- ii. Furthermore, Bet9ja makes no warranty that the Products will meet any deemed expectations, or that the Products will be uninterrupted, timely, secure, or error free. Bet9ja does not warrant, nor make any representations regarding the use, or results of the Products provided, in terms of their correctness, accuracy, reliability, or otherwise.

18. Representations and Warranties

- i. Both Parties represent that they are fully authorised to enter into this Agreement and that the performance and obligations of either Party will not violate or infringe upon the rights of any third-party or violate any other agreement between the Parties, individually, and any other person, organisation, or business or any law or governmental regulation.
- ii. Furthermore, the Agent hereby represents and warrants to Bet9ja that:
 - a. He/she has accepted the terms and conditions of this Agreement, which creates legal, valid and binding obligations on the Agent, enforceable against the Agent in accordance with its terms and conditions;
 - b. Such acceptance and the performance by the Agent of this Agreement will not conflict with or violate any provision of Law, Rule, Regulation or agreement to which the Agent is subject to; and
 - c. The Agent is an adult of at least 18 (eighteen) years of age. The Agent further represents that he/she has evaluated the Laws relating to his/her activities and obligations hereunder and he/she has independently concluded that he/she can enter into this Agreement and fulfil his/her obligations hereunder without violating any applicable Rule or Law.

19. Notices and Variations

- i. From time to time, Bet9ja may change, add, or otherwise modify the terms or conditions of this Agreement.
- ii. All notices or communications given or made under this Agreement shall be posted on the Agent's Web Account and this will be considered sufficient provision of notice and shall be deemed to have been communicated to the Agent.
- iii. In this regard:
 - a. Bet9ja can modify any of the terms and conditions contained in this Agreement, at any time and at its sole discretion.

- b. The Agent agrees that posting by Bet9ja a general notice, a change of terms notice, or a new agreement on the Web Account is considered sufficient notice and that such modifications and notice shall be effective as of the date of posting.
- c. Modifications may include, but are not limited to, changes in fees, payment schedules and procedures.
- d. Following Bet9ja's posting of a change notice or of a new agreement, if any modification is unacceptable to the Agent, the sole recourse of the Agent is to terminate this Agreement and his/her continued participation in the Agency Scheme. The said change notice or new agreement posted on the Web Account will constitute binding acceptance by the Agent of the change.
- e. The Agent agrees to frequently visit the Web Account to review the terms and conditions of this Agreement.

20. Assignment

- i. The Agent cannot assign, charge, encumber or otherwise deal with any of its rights and obligations under this Agreement, by operation of Law or otherwise, without Bet9ja's prior written consent. Subject to that restriction, this Agreement shall be binding on, inure to the benefit of, and enforceable against the Parties and their respective successors and assigns.
- ii. Bet9ja may assign, charge, encumber or otherwise deal with any of its rights or obligations under this Agreement, at any time, without the consent of the Agent. Notice of the assignment will however be communicated to the Agent by Bet9ja in the manner outlined in the **Notices and Variations** clause.

21. Entire Agreement

- i. The Parties acknowledge and agree that the provisions contained in this Agreement and the attached Schedules constitute the entire agreement between them with respect to the subject matter of this Agreement, and no statement or inducement with respect to such subject matter by any party which is not contained in this Agreement shall be valid or binding between the Parties.
- ii. This Agreement supersedes all prior understandings, arrangements or agreements between the Parties.

22. Severability

In the event any provision of this Agreement is deemed invalid or unenforceable, in whole or in part, that part shall be severed from the remainder of the Agreement whilst all other provisions will remain enforceable and valid.

23. No Waiver

Bet9ja's failure to enforce the Agent to the strict performance of any provision of this Agreement shall not constitute a waiver of its right to subsequently enforce such provision or any other provision of this Agreement.

24. Applicable Law, Dispute Resolution, and Governing Language

- i.** The Agreement shall be governed and construed in accordance with the Laws, regulations, and guidelines of the Federal Republic of Nigeria.
- ii.** The Parties hereto agree that, in the event of any dispute or difference between them arising out of this Agreement or in the interpretation of any of the provisions hereof, they shall endeavour to meet in an effort to resolve such dispute amicably. In the event that a settlement of any such dispute or difference is not reached pursuant to this sub-clause then the objective decision of Bet9ja shall prevail.
- iii.** In case of any “**Language Discrepancy**” between the meanings of any translated versions of this Agreement, the ordinary meaning of the English language words shall prevail.

25. Counterparts

This Agreement may be executed in any number of counterparts, each of which when executed and delivered shall constitute a duplicate original, but all counterparts together shall constitute a single agreement between the Parties.

26. Miscellaneous

i. Bet9ja Brand Promotion

- a. Bet9ja will make available to the Agent its Branding Materials, including banners and handbills, which the Agent will display at the Premises, provided the Agent abides by the terms and conditions of this Agreement.
- b. In using the Branding Materials, the Agent hereby agrees that he/she will cooperate fully with Bet9ja in order to establish and maintain the links to the Brand.
- c. During the Term, the Agent shall not modify any of the Branding Materials, unless the Agent has received prior written consent from Bet9ja to do so.
- d. The Agent’s activities in relation to any “**Promotion**” of the Brand shall be strictly in accordance with Bet9ja’s relevant guidelines as shall exist and be amended from time to time.
- e. Any Promotion offered by the Agent shall be conditional on the Agent’s receipt of Bet9ja’s prior written approval for that very Promotion. In the event that the Agent does not receive Bet9ja’s approval in relation to a Promotion and he/she nonetheless goes ahead with such Promotion, the Agent shall not be permitted to receive any Compensation generated through the Promotion or during the period in which the Promotion took place.
- f. The Agent shall refrain from marketing the Agency in any way which might compete with Bet9ja’s own marketing efforts, unless the Agent has received written approval from Bet9ja in such regard.

- g. The Agent's breach of the promotion guidelines shall constitute a breach of this Agreement, and Bet9ja retains full authority to (i) terminate this Agreement immediately in the event of such breach, and (ii) retain for its own account any proceeds arising as a result of such competitive activities that would otherwise have accrued to the Agent's benefit.

ii. Preparation – Equipment, Maintenance, and Related Technology

- a. The Agent and his/her staff hereby declare to have full knowledge of the technical requirements and the minimum equipment required in order to act as an agent of Bet9ja.
- b. The Agent shall bear all expenses relating to the preparation of the Premises to ensure they are able to maximise the commercialisation of the Agency.
- c. In the event of termination of this Agreement, for any cause, the Agent hereby agrees to immediately return to Bet9ja, at his/her own expense, at the place indicated by Bet9ja, the technology assets and the training material provided by Bet9ja. The Agent also undertakes to remove any trademark, logo, banner and/or window sticker, both internal and external to the Premises, relating to the activities carried out by Bet9ja.

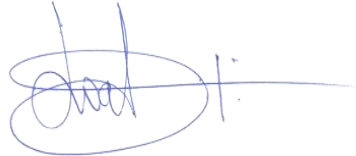
iii. Control and Checks of the Business

- a. Bet9ja, in accordance with the provisions of this Agreement, will carry out the necessary checks from time to time to ensure the proper fulfilment of the commitments of the Agent and the Agency and monitor the results of the sales by the Agent in order to ensure the effective management of the marketing activities of the Services.
- b. By way of example, Bet9ja will be able to:
 - 1. Establish and periodically verify the ownership of the lease of the Premises.
 - 2. Establish and periodically check the conformity of space used and effective display of marketing, training and promotional material.
 - 3. Ascertain and verify the compliance schedules and days of opening and closing period of the Agency.
- c. In the event that the Agent fails to meet the minimum trading requirements as set out by Bet9ja, the Agent accepts that Bet9ja will

actively seek a new agent for the Reference Area. The Agent will have no right to compensation or appeal.

IN WITNESS WHEREOF THE PARTIES AFOREMENTIONED HAVE EXECUTED THE AGREEMENT AS FOLLOWS

Signed on Behalf of KC Gaming Networks Ltd (Bet9ja):



Signature:

Status: **SENIOR LEGAL ADVISER**

Name: **ADEWALE AKANDE, ESQ.**

Date: **12TH JULY, 2023**

The Agent signed as follows:

Name: EYONG SUNDAY SUNDAY

Signature:

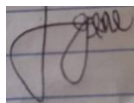


In the presence of:

Name: ... EGERUE NNAMDI JOSEPH

Address:No 72 OIL REFINERY ROAD ELELENWO PORT HARCOURT RIVERS STATE

Signature:



Date:25-07-2023

SCHEDULE A – COMMISSIONS FOR THE AGENT

Sport

The Agent will receive “**Commission**” on each ticket sold and the percentage is between 1% and 20% for Sports. If, for example, a Customer comes to the Premises and places a Bet of five selections and he/she Bets N100, the Agent is entitled to 7% of the N100 Stake, which is N7. If another Customer comes in and places a Bet with only one selection on it and Bets N5000, the Agent is entitled to 1% of the N5000, which is N50. This means that for each Bet Slip, the Agent receives a particular percentage of the Stake depending on the amount of selections in the manner outlined below:

Number of selections per Bet	% of Stake to which Agent is entitled
1	1%
2	2%
3	5%
4-5	7%
6-8	9%
9-10	12%
11-13	14%
14-20	16%
21-25	18%
26-40	20%

Also, at the end of the month, the Agent is entitled to a “**Bonus**” on Sports activities which is based on the total amount Staked each month.

The formula to calculate it is as follows:

(Total Stake of settled Bets in a month - Total Winnings paid out in a month) * 25% - Total Commission collected in a month = Sports Bonus Commission

League

The Agent receives Commission on each ticket sold and the percentage is between 1% and 8% for League. If, for example, a Customer comes to the Premises and places a Bet of five selections (Group 3) and he/she Bets N100, the Agent is entitled to 6% of the N100 Stake which is N6. If another person comes in and places a Bet with only one selection (Group 1) on it and Bets N5000, the Agent is entitled to 2% of the N5000, which is N100. This means that for each Bet Slip, the Agent receives a particular percentage of the Stake depending on the amount of selections in the manner outlined below:

Group	% of Stake to which Agent is entitled
1 (1 selection)	2%
2 (2 to 3 selections)	4%
3 (4 to 6 selections, and correct score)	6%
4 (7 to 10 selections, and combination of correct score)	8%

Also, Bet9ja will pay:

- **LEAGUE BONUS** – N10,000 to all Agents who sell a minimum of 300 tickets per day for a minimum of 6 days and a total stake of N400,000 to be sold within the commission week on Bet9ja League, La Liga, Serie A or a combination of all.
- **EXTRA LEAGUE BONUS** – N5, 000 to all Agents who sell a minimum of 150 tickets per day on LA LIGA, 150 tickets per day on PREMIER and 450 tickets per day in total for a minimum of 6 days in a week and a total stake of N600,000 to be sold within the commission week on Bet9ja League, La Liga, or a combination of both.
- **SERIE A BONUS** – N5,000 to all Agents who sell a minimum of 150 tickets per day for a minimum of 6 days and a total stake of 150,000 to be sold within the commission week on Bet9ja La Liga. To qualify for this, the Agent would also need to complete EXTRA LEAGUE as seen above. If the Agent completes SERIE A and not EXTRA LEAGUE, the Agent shall not qualify for this bonus.

Bet9ja League for Online Customers

For online Customers of Bet9ja League, 20% of Gross Profit (i.e. total Stake – total Winning) in a given Commission month will determine the amount to which the Agent is entitled.

For instance, if total Stakes on Bet9ja League products are N5000, and total Winnings are N4000, the Agent is entitled to 20% of N1000 (i.e. N5000 – N4000), which is N200.

49ja

The Agent receives Commission on each game played and the percentage ranges between 2% and 15% for 49ja depending on the type of Bet the Customer places. Each Bet is associated with a specific “**Group**” (Groups 1 to 6). If, for example, a Customer places a Bet associated with Group 3 and he/she Bets N100, the Agent is entitled to 6% of the N100 Stake, which is N6. If another Customer comes in and places a Bet associated with Group 1 and Bets N5000, the Agent is entitled to 2% of the N5000, which is N100. This means that for each Bet, the Agent receives a particular percentage of the Stake depending on the Groups associated with the Bet in the manner outlined below:

Group	% of Stake to which Agent is entitled
Group 1: - Rainbow (+2 selections) - BetZero (1-5 selections)	2%
Group 2: - Total Colour - HILO, - Rainbow (+3 selections)	4%

- BetZero (6-8 selections)	
Group 3: - Bet49 (1-2 correct numbers) - Dragon (6-10, 15, and 20 numbers) - BetZero (9-10 selected numbers not drawn) - Rainbow (0, +4, +5 selections)	6%
Group 4: - BetZero (15-20 selected numbers not drawn)	7%
Group 5: - Bet49 (3 correct numbers)	10%
Group 6: - Bet49 (4-5 correct numbers) - Rainbow (6 selections)	15%

Racing

The Agent receives Commission on each ticket sold and the percentage is between 3% and 9% for Racing. If, for example, a Customer comes to the Premises and places a Bet within Group 3 and he/she Bets N100, the Agent is entitled to 9% of the N100 Stake, which is N9. If another Customer comes in and places a Bet with only one selection on it and Bets N5000, the Agent is entitled to 3% of the N5000, which is N150. This means that for each Bet Slip, the Agent receives a particular percentage of the Stake depending on the amount of selections in the manner outlined below:

Betting Group	% of Stake to which Agent is entitled
1 (Winning, P2, and P3)	3%
2 (Forecast, and Straight Forecast)	6%
3 (Tricast)	9%

Dice

The Agent receives Commission on each game played and the percentage ranges between 2% and 5% for Dice depending on the type of Bet the Customer places. Each Bet is associated with a specific Group (Groups 1 to 4). If, for example, a Customer places a Bet associated with Group 3 and he/she Bets N100, the Agent is entitled to 4% of the N100 Stake, which is N4. If another Customer comes in and places a Bet associated with Group 1 and Bets N5000, the Agent is entitled to 2% of the N5000, which is N100. This means that for each Bet, the Agent receives a particular percentage of the Stake depending on the Groups associated with the Bet in the manner outlined below:

Group	% of Stake to which Agent is entitled
Group 1: - Sum (8 – 12) - Rand (Mid) - Any Double - Any Mix	2%

- Number to appear	
Group 2: - Sum (7, 13, 14) - Range (Low, High) - Double Equal	3%
Group 3: - Sum (5, 6, 15, 16) - Any Triple	4%
Group 4: - Sum (3, 4, 17, 18) - Triple Equal	5%

Casino

For all Casino products played by online Customers, 15% of “**Gross Profit**” (i.e. total Stake – total Winning) in a given Commission month will determine the amount to which the Agent is entitled to.

For instance, if total Stakes on Casino products are N5000, and total Winnings are N4000, the Agent is entitled to 15% of N1000 (i.e. N5000 – N4000), which is N150.

Bet9ja Stadium

Betting Type	% of Stake to which Agent is entitled
Single Bet (except for Correct Score)	2%
2 events (With No Correct Score)	4%
3 – 5 events (With No Correct Score)	6%
6 – 10 events (With No Correct Score)	8%
2 – 10 events (With Correct Score)	8%

Spin and Win

Each bet on Spin and Win attracts a 4% Commission on Stake.

Other

- **Bet9ja 49ja/Races Bonus** – Bet9ja pays N5,000 to all agents who sell a minimum of 200 tickets per day in Bet9ja races and/or 49ja in total for a minimum of 6 days in a week and a total stake of 200,000 to be sold within the commission week on 49ja or Bet9ja Races.
- **Bet9ja All Bonuses** – An Agent is entitled to an extra N5,000 bonus if he completes the bonuses for LEAGUE, SERIE A, 49ja/Races and Extra League.

Note: Commissions are subject to change at the sole discretion of the Company.

SCHEDULE B – PRODUCTS

Sports Betting

“**Sports Betting**” includes Betting on major sporting events and sports including soccer, tennis, and basketball.

Sports Betting allows Customers to submit “**Pre-Match**” Bets and “**Live**” Bets:

- Pre-Match markets cover all major events and leagues before the event begins.
- Live-Betting allows Customers to place Bets on changing odds once the event has begun and until it ends e.g. up to the 90th minute of a football game.

Virtual Games (inclusive of Bet9ja League, Bet9ja Stadium, Bet9ja Simulate, and others that may be added from time to time)

A “**Virtual Game**” is any game or Betting product made available by Bet9ja on the Bet9ja Platform that allows real money Betting by the Customer on simulations of real-life events or simulations of real-life gaming activity. For the avoidance of doubt, the Virtual Game does not need to have the word ‘virtual’ stated in its title. Virtual Games offer a Betting experience similar to Betting on real sports events or placing a real casino Bet and is based on virtual sports match simulation or casino game simulation graphics and technologies.

Virtual Games provide a computer-generated presentation of a totally random draw result where the outcomes are decided by the numbers selected by an independently certified “**Random Number Generator**”. Each number can only be drawn once therefore a selection you choose can be allocated only one place in the winning results.

Additional Virtual Games may be made available by Bet9ja at any time together with any individual Virtual Games rules. In the event of inconsistency between these Virtual Games Terms and Conditions and such individual rules, the individual rules shall prevail.

Casino

“**Casino**” includes a variety of traditional Casino games such as Blackjack, Roulette, and Baccarat. Products are available also Live and on mobile platforms. Bet9ja will regularly update these products as it deems fit.

49ja

Similar to a lottery game, “**49ja**” is won by selecting the correct outcomes of numbered ball draws. There are 6 different types of Bets a Customer can place:

- **Bet49** requires the Customer to select a series of numbers which they think will be drawn.
- **Hi-Lo** involves the Customer placing a Bet on the sum of the numbers being drawn. The Customer can choose among HI, MID, and LO: HI if they think the combination of the numbers drawn will add up to 152 or above, MID if they think the combination will add up to 149, 150, or 151, and LO if they think the combination will add up to 148 or less.

- **Dragon** requires the Customer to select between 6 and 15 numbers. The Customer will win if at least 3 of the selected numbers are drawn. Depending on the amount of numbers selected and drawn, the Customer will have higher or lower odds.
- **Colour** is based on the colour of the balls drawn rather than on their number. The Customer will try to predict the colour which will appear the most in the draw.
- **Rainbow**, similarly to Colour, involves selecting the colour of the balls rather than the number. However, the Customer will select the number of balls which will have a determined colour as opposed to the colour that appears the most in the draw.
- **Bet Zero** entails the Customer selecting 1 to 4 numbers which they think will not be drawn out in the extraction.

Virtual Racing

“**Virtual Racing**” is a virtual dog racing game which is available 24 hours a day. In each race, 6 virtual dogs participate in the race, where the name is indicated and where the last 5 results and form is valued according to the probability of a victory.

Bet Types:

- W = One has to predict the name of the dog which will win the race.
- P2 = One has to predict the name of the dog which will come first or place second.
- P3 = One has to predict the name of the dog which will place first, second or third in the race.
- Double = One has to predict the dogs which will place first and second in that exact order.
- Quinella = One has to predict the dogs which will place first or second.
- Under/Over (Hand 3.5) = One has to predict if the number of the dog which will win is larger or smaller than 3.5.
- Under = 1,2,3
- Over = 4,5,6
- Odd/Even = One has to predict if the number of the dog which wins will be odd or even.
- Odd = 1,3,5
- Even = 2,4,6
- Sum of places = One has to predict the sum of the numbers of the dogs which will place first, second or third. E.g.: If the order of placing during a race is 1-3-6 or 1-4-5, the winning selection of the ‘Sum of places’ Bet is 10.
- Trio = One has to predict the dogs who will place first, second or third in the exact order.

All placed Bets will be automatically confirmed.

All Bets may be cancelled up to 10 seconds before the start of the race.

All the races have a progressive identification and it is possible to check the order of placement in the 'Race result' section.

In cases where the result is not visually displayed due to internet connection problems, the final 'Race Result' will be taken as valid.

Dice

When playing “**Dice**”, a player Bets on the result of the roll of a pair of standard dice. If the player guesses correctly a win occurs. There are different Betting types:

- Number - Both dice will return a specific number.
- HI/MID/LO - The outcome will be either in the Low (2-5, Middle (6-8), or High (9-12) range.
- Odd/Even - The outcome of the roll will be an odd or an even number.
- Any double - Both dice will have the same value.
- Any mix - Both dice will have different values.

Note: Products are subject to change at the sole discretion of the Company.

SCHEDULE C – ANTI-MONEY LAUNDERING DECLARATION

I, the Agent, confirm that I have read the Bet9ja **AML/CFT Compliance Policies**, including the details in this Schedule on anti-money laundering which is to prohibit and actively prevent money laundering and any activity that facilitates money laundering or the funding of terrorist or criminal activities by complying with all applicable requirements under the “**MONEY LAUNDERING (PREVENTION AND PROHIBITION) ACT, 2022**” (“**MLPPA**”) and its implementing regulations.

Also, I understand that Bet9ja’s **AML/CFT Compliance Policies**, procedures and internal controls are designed to ensure compliance with all applicable MLPA regulations and rules and will be reviewed and updated on a regular basis to ensure appropriate policies, procedures and internal controls are in place to account for both changes in regulations and changes in its business.

Signed: ..



Name: EYONG SUNDAY SUNDAY

Date:25-07-2023

Section A – Money Laundering Obligations

- i. For Stakes and Winnings that are N250,000.00 and above:
 - a. Bet9ja is legally required to:
 1. Keep a record of this, if such Stake/Winning is settled by bank transfer;
 2. Report it to the SCUML, if such Stake/Winning is settled in cash.
 - b. The Agent undertakes to report any Stake/Winning in his/her Premises of N250,000.00 and above which is settled in cash. In such case, all Customers shall fill in the AML Compliance Receipt. Receipts will be collated at the end of every week by the relevant Super-Agent and transmitted to the AML Unit of Bet9ja for proper documentation and onward transmission to SCUML.
 - c. In accordance with the provisions of Nigerian Financial Intelligence Unit Act, the Agent is responsible for reporting any transaction that may appear to him or her to be suspicious when considering the amount, volume, and other circumstances surrounding the transaction. The Agent shall use the appropriate template, as provided by Bet9ja’s Legal team, to report the suspicious transaction through legal@bet9ja.com.

- ii. For Stakes and Winnings that are N5,000,000.00 and above:
 - a. Bet9ja is legally required to capture and report all Stakes placed and Winnings that are N5,000,000.00 and above to SCUML.
 - b. The Agent shall collate and report Stakes/Winnings of N5,000,000.00 and above regardless of payment medium and same shall be sent to the AML Unit of Bet9ja for documentation and adequate reporting to the relevant authority.

SCHEDULE D: OBJECTIVE AND VOLUME OF BETS

Sports Betting

- a. The Agent must ensure that the minimum weekly amount Staked for Sports Betting is complied with. In the event of failure to reach such target Bet9ja has the right to terminate the Agreement. The minimum collection amount for each week is N170,000.00.
- b. If the amount Staked on Sports Betting is less than N700,000.00 in a period of 4 (four) weeks, for two consecutive periods, Bet9ja shall be entitled to terminate the Agreement or seek a new agent for that Reference Area.

Virtual Games

The Agent must ensure that the minimum weekly amount Staked Virtual Games is complied with. In the event of failure to reach such target Bet9ja has the right to terminate the Agreement. The minimum amount Staked target for each week is N500,000.00.

Notes:

a. Premises and Opening Times

The Agent must keep open the Premises for the business of the Agency to the public in a continuous manner on the agreed days and hours.

b. Minimum collection amounts

Such amounts are at the sole discretion of Bet9ja and are subject to revision as and when Bet9ja deems fit.

SCHEDULE E – INITIAL DEPOSIT

The Agent shall raise the sum of N75,000.00 (Seventy-Five Thousand Naira Only). These funds will be used as:

- The initial balance for the Agent to place Bets against; and

- The purchase of a Bet slip printer to be provided by Bet9ja.

SCHEDULE F – DECLARATION OF SUITABILITY OF PREMISES

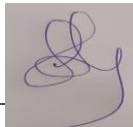
ADRESS OF PREMISES: 13 ARIKPO EGEDE STREET EGBIZUM IKPAKAPIT UGEP

which is located**13 ARIKPO EGEDE STREET EGBIZUM IKPAKAPIT UGEP**

I CONFIRM THAT MY PREMISES ARE PREPARED FOR A BETTING SHOP AND THE BELOW FACTS ARE TRUE:

1. The Premises are located in an area suitable for the conduct of the collection of the Bets;
2. An electrical system to power the technology and equipment for a Betting shop is in place as follows:
 - a. An electric system in compliance with the applicable standards of safety; and
 - b. A dedicated electrical panel to provide power to the power outlets of technology (PC/Terminals, Monitors, Printers, Scanners, TVs, DSTV, Internet Router).
3. The authorization for the installation of outdoor signs has been obtained.

SIGNATURE _____



NAME _____EYONG SUNDAY SUNDAY

DATE __ 25-07-2023

SCHEDULE G - BET9JA AGENCY AGREEMENT – AGENT DECLARATION

Having read the Agency Agreement, prior to signing this, the Agent declares that he/she:

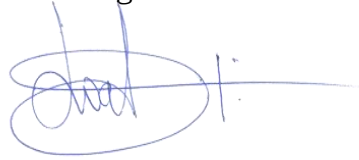
- i. Has the legal capacity to enter into and execute the Agreement, which contains valid and binding obligations.
- ii. Is not in liquidation, insolvent, bankrupt or otherwise subject to or in a position to become subject to bankruptcy proceedings.

- iii. Does not – directly or indirectly – hold any positions in any other Betting organisation inside or outside of Nigeria.
- iv. Does not hold a Betting agency directly or indirectly with another Betting company either inside or outside Nigeria.

Has complied with, and shall continue to comply with, all obligations to their employees, arising from Laws and Regulations pursuant to the Nigerian Labour Act.

IN WITNESS WHEREOF THE PARTIES MENTIONED IN THE AGREEMENT HAVE EXECUTED THE DECLARATION AS FOLLOWS:

Signed on behalf of KC Gaming Networks Ltd as follows:



Sign.....

Status: **SENIOR LEGAL ADVISER**

Name: **ADEWALE AKANDE, ESQ.**

Date: **12TH JULY, 2023**

The Agent signed as follows

Name EYONG SUNDAY SUNDAY

Signature:...

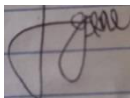


In the presence of

Name..... EGERUE NNAMDI JOSEPH

Address.....No 72 OIL REFINERY ROAD ELELENWO PORT HARCOURT RIVERS STATE NIGERIA

Signature:...



Date:.....25-07-2023